

Bhagwan Singh v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 21 March 2023 · WRIT - C No. - 15892 of 2011 · **Writ dismissed for want of prosecution; Clause 8.1 recovery not decided.**

HEADNOTE

Writ challenging a Recovery Certificate dated 1 October 2010, said to have been sent to the Collector without complying with Clause 8.1 of the U.P. Electricity Supply Code, 2005, was kept pending from March 2011. The Court asked whether a provisional assessment had been made, served, objected to and decided, and whether a final assessment had issued and been communicated. Licensee's counsel stated that a provisional assessment dated 31 January 2009 had been made, that instructions were silent on the mode of service and on whether any final assessment order had been passed, and that, no objections having been received, the provisional assessment was treated as final and the certificate sent. The petitioner said he had never received the provisional assessment and that, without a final assessment order, he would be deprived of an appeal under Section 127 of the Electricity Act, 2003. Notice issued pending admission, and recovery was stayed subject to a without-prejudice deposit of Rs 1 lakh. On 21 March 2023 none appeared for the petitioner even in the revised call. The writ was dismissed for want of prosecution. The Court did not decide whether Clause 8.1 had been followed, whether treating the provisional assessment as final was lawful, or the validity of the certificate.

FACTUAL SUMMARY

Bhagwan Singh challenged a Recovery Certificate dated 1 October 2010 sent by respondent no. 2 to the Collector, Hathras (Mahamaya Nagar), on the ground that it issued without complying with Clause 8.1 of the U.P. Electricity Supply Code, 2005. On 16 March 2011 the Court listed seven queries on whether a provisional assessment had been made, served, objected to and decided, and whether a final assessment had issued and been communicated. After further listings the Collector was impleaded. Licensee's counsel said a provisional assessment dated 31 January 2009 had been made, but instructions were silent on service and on whether any final assessment had been passed; because no objections were received, the provisional assessment was treated as final and the certificate was sent. The petitioner said he had never received the provisional assessment and that, without a final assessment order, he would lose his appeal under Section 127 of the Electricity Act, 2003. On 13 April 2011 notice issued pending admission and recovery was stayed subject to a without-prejudice deposit of Rs 1 lakh. On 21 March 2023 none appeared for the petitioner even in the revised call.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1

theft-assessment recovery certificate; writ dismissed for want of prosecution

QUESTION

Whether recovery on a certificate said to rest on a provisional assessment treated as final, without proof of service or a final assessment order, may proceed when none appears for the petitioner even in the revised call?

HOLDING

On 16 March 2011 the Court called for instructions on whether a provisional assessment had been made, served, objected to and decided, and whether a final assessment had issued and been communicated. On 13 April 2011, recording the petitioner's case that the Recovery Certificate dated 1 October 2010 had been sent to the Collector without complying with Clause 8.1 of the U.P. Electricity Supply Code, 2005, and the licensee's statement that a provisional assessment dated 31 January 2009 had been treated as final because no objections were received, the Court issued notice pending admission and stayed recovery provided the petitioner deposited Rs 1 lakh within four weeks without prejudice. On 21 March 2023 none appeared for the petitioner even in the revised call, and the writ was dismissed for want of prosecution. Those Code questions, the Section 127 point, and the certificate were not decided.

¶ orders of 16.3.2011, 13.4.2011 and 21.3.2023

FLAG Thin procedural disposal. Order-sheet of five listings (16.3.2011–21.3.2023). Coram is the disposing bench of 21.3.2023 (Manoj Kumar Gupta and Prashant Kumar, JJ.). Petitioner invoked Clause 8.1 by number; the Court did not construe it. The 13.4.2011 stay was interlocutory and auto-vacating on default in the deposit.

writ-petition-dismissed-for-want-of-prosecution-on-non-appearance

Writ challenging a 1.10.2010 recovery certificate, kept pending after the Court asked whether provisional and final assessments under Clause 8.1 had been made and served, was dismissed for want of prosecution when none appeared even in the revised call; the certificate and Code procedure were not decided. ¶ [order of 21.3.2023](#)

NOT DECIDED — NEGATIVE AUTHORITY**NOT DECIDED — WHETHER THE RECOVERY CERTIFICATE DATED 1 OCTOBER 2010 WAS ISSUED WITHOUT COMPLYING WITH CLAUSE 8.1 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005**

Petitioner's case on 13.4.2011; not decided. ¶ [order of 13.4.2011](#)

NOT DECIDED — WHETHER THE PROVISIONAL ASSESSMENT DATED 31 JANUARY 2009 WAS SERVED ON THE PETITIONER, AND WHETHER IT COULD BE TREATED AS A FINAL ASSESSMENT BECAUSE NO OBJECTIONS WERE RECEIVED, WITHOUT A FINAL ASSESSMENT ORDER

Seven queries listed on 16.3.2011; licensee's instructions of 13.4.2011 were silent on mode of service and on whether any final assessment order had been passed; left unanswered. ¶ [orders of 16.3.2011 and 13.4.2011](#)

NOT DECIDED — WHETHER THE ABSENCE OF A FINAL ASSESSMENT ORDER DEPRIVED THE PETITIONER OF AN APPEAL UNDER SECTION 127 OF THE ELECTRICITY ACT, 2003

Raised in rejoinder on 13.4.2011; not decided. ¶ [order of 13.4.2011](#)

NOT DECIDED — VALIDITY OR QUANTUM OF THE ASSESSMENT AND OF THE RECOVERY CERTIFICATE DATED 1 OCTOBER 2010

The 13.4.2011 stay was interlocutory and without prejudice; the petition was later dismissed for want of prosecution.

¶ [orders of 13.4.2011 and 21.3.2023](#)